

# Madhuri Gupta v. Uttar Pradesh Power Corporation Limited

High Court of Judicature at Allahabad · Division Bench · 20 January 2022 · Writ - C No. 27239 of 2021 · **Writ dismissed as infructuous after 4.4 occupier-indemnity direction.**

## HEADNOTE

An occupier whose new-connection application was rejected may submit the Annexure 4.2 indemnity form under clause 4.4(a)(i) of the U.P. Electricity Supply Code, 2005; the licensee is to consider grant of connection in accordance with law within two weeks of that submission. The writ was later dismissed as infructuous after counsel stated the relief prayed had been granted.

## FACTUAL SUMMARY

Madhuri Gupta, occupier and not owner of the house, challenged the online rejection of her application for electricity supply, asserting that the distribution licensee must connect an owner or occupier. The Court first asked the licensee to explain under which provision a connection granted to her had been disconnected. After affidavits, the licensee relied on clause 4.4(a)(i) of the U.P. Electricity Supply Code, 2005 (occupier indemnity in Annexure 4.2). On 20 January 2022 counsel stated the prayed relief had been granted; the writ was dismissed as infructuous.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::4.4(a)(i)

occupier new connection on indemnity form

#### HOLDING

Where the applicant is an occupier and not the owner, clause 4.4(a)(i) of the U.P. Electricity Supply Code, 2005 permits a new-connection application to be processed on proof of occupancy, including an indemnity form as per Annexure 4.2. The occupier may submit that indemnity form to the licensee, which is to consider grant of the connection in accordance with law within two weeks of submission. ¶ 3.12.2021

## PRINCIPLE TAGS

**clause-4.4-occupant-connection-on-indemnity-bond** The Court treated clause 4.4(a)(i) as the occupier's path to a new connection by submission of the Annexure 4.2 indemnity form, and directed the licensee to consider grant in accordance with law rather than itself ordering a connection. ¶ 3.12.2021

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — PROVISION UNDER WHICH THE PETITIONER'S EARLIER CONNECTION WAS DISCONNECTED

On 17 November 2021 the licensee was given time to explain the disconnection; that issue was not decided before the writ was dismissed as infructuous. ¶ 17.11.2021